

No. 03-17-00812-CV

**IN THE COURT OF APPEALS
FOR THE THIRD JUDICIAL DISTRICT
AUSTIN, TEXAS**

FILED IN
3rd COURT OF APPEALS
AUSTIN, TEXAS
5/14/2018 12:41:37 PM

**AHMAD ZAATARI, MARWA ZAATARI, JENNIFER GIBSON HEBERT,
JOSEPH "MIKE" HEBERT, LINDSAY REDWINE, RAS REDWINE VI,
AND TIM KLITCH,**

Plaintiffs-Appellants,

&

STATE OF TEXAS,

Intervenor-Appellees

v.

**CITY OF AUSTIN, TEXAS AND
STEVE ADLER, MAYOR OF THE CITY OF AUSTIN**

Defendant-Appellees.

*On Appeal from the 53rd Judicial District, Travis County, Texas
Cause No. D-1-GN-16-00260-CV*

**MOTION OF NON-RESIDENT ATTORNEY, CHRISTINA SANDEFUR
FOR ADMISSION *PRO HAC VICE***

MATTHEW R. MILLER
Texas Bar No. 24046444
CHRISTINA SANDEFUR
Pro hac vice application pending
litigation@goldwaterinstitute.org
**Scharf-Norton Center for
Constitutional Litigation at the
GOLDWATER INSTITUTE**
500 East Coronado Road
Phoenix, Arizona 85004
Phone: (602) 256-5000
Fax: (602) 256-7045

Christina Sandefur (“Applicant”) files this Motion of Non-Resident Attorney for Admission *Pro Hac Vice* to appear on behalf of *Amicus Curiae* the Goldwater Institute, and states as follows:

1. Applicant seeks permission to appear *Pro Hac Vice* as counsel for *Amicus Curiae* the Goldwater Institute in the above-titled and numbered cause of action.

2. Applicant is an attorney with the Scharf-Norton Center for Constitutional Litigation at the Goldwater Institute, 500 East Coronado Road, Phoenix, Arizona 85004, telephone (602) 256-5000, facsimile (602) 256-7045.

3. Applicant will be associated in this proceeding with Matthew R. Miller, resident whose State Bar Number is 24046444. Mr. Miller is a licensed attorney who practices with the Scharf-Norton Center for Constitutional Litigation at the Goldwater Institute, 500 East Coronado Road, Phoenix, Arizona 85004.

4. Applicant has not appeared or sought leave to appear in Texas courts in the past two years.

5. Applicant is an active member in good standing with the State of Arizona (027983), U.S. District Court for the District of Arizona, the U.S. Court of Appeals for the Ninth Circuit, and the U.S. Supreme Court.

6. Pursuant to TEX. R. GOVERN. BAR ADM’N XIX(a), Applicant has filed an Application for Admission *Pro Hac Vice* with the Texas Board of Law Examiners and paid the \$250.00 filing fee. The Texas Board of Law Examiners’ letter acknowledging the application is attached as Exhibit A.

7. Applicant has not been the subject of disciplinary actions by the bar or the courts of any jurisdiction in which she is licensed in the past five years. Applicant

has not been denied admission to the courts of any state or to any federal court during the past five years.

8. Applicant attests that she is familiar with the State Bar Act, the State Bar Rules, the Texas Disciplinary Rules of Professional Conduct governing the conduct of members of the State Bar of Texas and the Texas Rules of Appellate Procedure. Applicant attests that she will at all times abide by and comply with the same, so long as this lawsuit is pending and she has not withdrawn as counsel in the proceeding.

WHEREFORE, Applicant respectfully requests that the Court grant Applicant's Motion, and enter an order allowing her to participate as one of the attorneys for *Amicus Curiae* the Goldwater Institute, in the above-titled and numbered cause of action.

Respectfully Submitted this 14th day of May, 2018,

/s/ Christina Sandefur
CHRISTINA SANDEFUR
litigation@goldwaterinstitute.org
**Scharf-Norton Center for
Constitutional Litigation at the
GOLDWATER INSTITUTE**
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Phoenix, Arizona 85004
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CERTIFICATE OF CONFERENCE

As required by Texas Rule of Appellate Procedure 10.1(a)(5), I certify that I have conferred, or made a reasonable attempt to confer, with all other parties, which are listed below, about the merits of this motion with the following results:

Does not oppose the motion:

Robert Henneke
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Attorneys for Defendants-Appellees

/s/ Matthew R. Miller

Matthew R. Miller

CERTIFICATE OF SERVICE

The undersigned certifies that a true and correct copy of the above and foregoing Motion was served on the persons listed below by first class mail on this the 14th day of May, 2018.

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/s/ Christina Sandefur
Christina Sandefur

Board of Law Examiners
Appointed by the Supreme Court of Texas

May 08, 2018

Christina Sandefur

Via: E-Mail

Acknowledgment Letter
Non-Resident Attorney Fee

According to Texas Government Code §82.0361, "a nonresident attorney requesting permission to participate in proceedings in a court in this state shall pay a fee of \$250 for each case in which the attorney is requesting to participate."

This Acknowledgement Letter serves as proof that the Board of Law Examiners has received \$250 in connection with the following matter:

Non-resident attorney: Christina Sandefur

Case: 03-17-00812-CV

Texas court or body: Court of Appeals for the Third Judicial District, Austin

After satisfying the fee requirement, a non-resident attorney shall file a motion in the Texas court or body in which the non-resident attorney is requesting permission to appear. The motion shall contain the information and statements required by Rule XIX(a) of the Rules Governing Admission to the Bar of Texas. The motion must be accompanied by this Acknowledgment Letter and by a motion from a resident practicing Texas attorney that contains the statements required by Rule XIX(b).

The decision to grant or deny a non-resident attorney's motion for permission to participate in the proceedings in a particular cause is made by the Texas court or body in which it is filed.

For more information, please see Rule XIX of the Rules Governing Admission to the Bar of Texas and §82.0361, of the Texas Government Code, which can be found on the Board's website.

Signed,



Susan Henricks
Executive Director

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